

TIDEWATER UNDERWRITERS EXCHANGE
a reciprocal insurer | 600 Lynnhaven Parkway, Suite 400, Virginia Beach, VA 23452 | NAIC No. 19725

**COMMERCIAL GENERAL LIABILITY COVERAGE PART - ROOFING AND EXTERIOR TRADES PROGRAM
DECLARATIONS**

POLICY NUMBER: GL-3376-90284
POLICY PERIOD: From 11/01/2024 to 11/01/2025 at 12:01 A.M. Standard Time
COVERAGE FORM: TUE-CGL 200 (05-24) Commercial General Liability - Occurrence
RENEWAL OF: GL-3376-90283

NAMED INSURED: Tidewater Roofing & Exteriors, LLC
DBA Tidewater Roofing

ADDITIONAL NAMED INSURED:
Tidewater Sheet Metal & Gutter, LLC

MAILING ADDRESS: 3115 Godwin Boulevard
Suffolk, VA 23434

YARD / SHOP: 3115 Godwin Boulevard, Suffolk, VA 23434 (owned, 2.4 acre yard with 9,600 sq ft shop)

FORM OF BUSINESS: Limited Liability Company (Virginia)

OPERATIONS: Commercial and institutional roofing - TPO, EPDM and modified bitumen low-slope systems; standing seam and architectural metal; slate and tile restoration; sheet metal, gutters, copings and flashings; roof repair and maintenance; limited exterior wall panel and waterproofing work. NO residential re-roofing of single family dwellings.

LICENCE: Virginia Class A Contractor Licence No. 2705-118442, Specialty ROC/CIC

NAICS: 238160 - Roofing Contractors

PRODUCER: Coastline Brantley Insurance Advisors
Producer Code VA-2288
Broker Reference: CB/R00F/2024/3376
150 West Main Street, Suite 1600, Norfolk, VA 23510
Producer: Sylvia Okonjo-Pratt | (757) 555-0271 | sokonjo@coastlinebrantley.example

LIMITS OF INSURANCE

General Aggregate Limit (other than Products-Completed Operations)	\$ 2,000,000
Products-Completed Operations Aggregate Limit	\$ 1,000,000
Personal and Advertising Injury Limit	\$ 1,000,000
Each Occurrence Limit	\$ 1,000,000
Damage To Premises Rented To You	\$ 100,000
Medical Expense Limit (any one person)	\$ 5,000

Aggregate applies POLICY-WIDE (no per-project aggregate is provided under this policy).

DEDUCTIBLE: \$ 10,000 per occurrence, property damage only, ALAE outside the deductible (End. TUE-DED 235). Bodily injury claims carry no deductible.

WATER DAMAGE FROM OPEN ROOF SUBLIMIT (End. TUE-OPEN 445):
\$ 500,000 per occurrence / \$ 1,000,000 aggregate for property damage caused by rain, wind-driven rain or water entering a building through an opening created by, or a roof left incomplete, uncovered or inadequately protected by, the insured.

CLASSIFICATION AND PREMIUM BASIS

Class Code	Classification	Basis	Exposure	Premium
91746	Roofing - commercial, all kinds, over two stories	Payroll	\$ 2,880,000	\$ 262,080
91560	Sheet metal erection, gutters and downspouts	Payroll	\$ 740,000	\$ 41,440
91585	Contractors - executive supervisors	Each	5	\$ 6,200
10073	Yard and shop - own occupancy	Area	9,600 sq ft	\$ 1,150
Estimated Annual Advance Premium (subject to audit)				\$ 310,870
Minimum Earned Premium at inception (25%)				\$ 77,718

COVERAGES

Coverage A (Bodily Injury and Property Damage Liability), Coverage B (Personal and Advertising Injury) and

Coverage C (Medical Payments) are provided on an occurrence basis as set out in the coverage form, with the right and duty to defend suits seeking damages payable under this insurance. Supplementary Payments are in addition to the limits.

EXCLUSIONS, WARRANTIES AND CONDITIONS SPECIFIC TO ROOFING OPERATIONS

In addition to the standard Coverage A exclusions, the following apply:

1. HOT WORK, TORCH AND KETTLE WARRANTY (End. TUE-HOT 430). It is warranted that the insured will not perform any torch-applied, open flame, kettle, hot air welding above 900 degrees F, or heat-gun operation on any roof unless:
 - (a) a written hot work permit is issued for each work area each day;
 - (b) a dedicated fire watch, separate from the operator, is posted during the work and for a minimum of two (2) hours after the work stops, with a documented final check thirty (30) minutes later;
 - (c) a minimum of two 20-lb ABC extinguishers and a charged water source are within 25 feet;
 - (d) combustible materials are removed or covered with listed fire-resistant blankets within 35 feet; and
 - (e) the daily permit and fire watch log are retained for three (3) years.
 Failure to comply excludes any loss caused by or resulting from that operation.
2. OPEN ROOF AND WEATHER PROTECTION CONDITION (End. TUE-OPEN 445). It is a condition of coverage for water damage that the insured, at the end of each work period and before any forecast precipitation:
 - (a) installs a temporary watertight covering over all open or removed areas, mechanically fastened and lapped, and seals all penetrations and terminations;
 - (b) does not remove more roof surface in any one day than can be dried in before the end of that work period;
 - (c) monitors the National Weather Service forecast for the work location each morning and does not open a roof where the probability of precipitation exceeds 40% within the work period; and
 - (d) documents daily tear-off and dry-in photographs.
 Water damage arising from a failure to comply is excluded. Where the condition is met, water damage is covered subject to the sublimit stated above.
3. PROFESSIONAL SERVICES EXCLUSION (TUE-PROF 415), including roof design, load calculations, moisture surveys, infrared scans and consulting reports issued for a fee.
4. ABSOLUTE MOULD, FUNGI AND MICROBIAL MATTER EXCLUSION (TUE-MOLD 420).
5. RESIDENTIAL RE-ROOFING EXCLUSION (TUE-RES 425) - no coverage for work on single family dwellings, duplexes, townhomes or condominium units of three stories or fewer.
6. SUBCONTRACTED WORK EXCLUSION (TUE-SUBK 435) - no coverage for bodily injury or property damage arising out of work performed by any subcontractor of the insured unless (a) a written subcontract was in place, (b) a certificate evidencing CGL limits of at least \$ 1,000,000 each occurrence naming the insured as an additional insured for ongoing and completed operations was obtained before the work began, and (c) the subcontractor's policy contains no roofing exclusion.
7. ASBESTOS, SILICA AND LEAD EXCLUSION (TUE-SIL 440), including exposure arising from tear-off of existing built-up roofing containing asbestos.
8. HEIGHT LIMITATION (TUE-HGT 450) - no coverage for operations on any structure exceeding six (6) stories or seventy-five (75) feet in height without prior written approval endorsed to this policy.
9. EARTH MOVEMENT, COMMUNICABLE DISEASE, CYBER, EMPLOYMENT PRACTICES, and PUNITIVE DAMAGES where insurance is prohibited by law.
10. DAMAGE TO YOUR WORK - the roof system installed by the insured, subject to the standard subcontractor exception within the products-completed operations hazard.

ENDORSEMENTS ATTACHED

TUE-CGL 200 (05-24) CGL Coverage Form - Occurrence
 TUE-DED 235 (05-24) Property Damage Deductible - Per Occurrence
 TUE-AI 300 (05-24) Additional Insured - Owners, Lessees or Contractors - Ongoing Operations, Blanket
 TUE-AI 305 (05-24) Additional Insured - Completed Operations, Blanket Where Required by Written Contract
 TUE-AI 314 (05-24) Additional Insured - Building Owner, Manager and Lessor for Roofing Operations
 TUE-PRI 315 (05-24) Primary and Non-Contributory Where Required by Written Contract
 TUE-WOS 320 (05-24) Blanket Waiver of Subrogation
 TUE-NOC 325 (05-24) Notice of Cancellation to Certificate Holders - 30 Days
 TUE-HOT 430 (05-24) Hot Work, Torch and Kettle Warranty
 TUE-OPEN 445 (05-24) Open Roof and Weather Protection Condition with Water Damage Sublimit
 TUE-PROF 415 (05-24) Professional Services Exclusion
 TUE-MOLD 420 (05-24) Absolute Mould, Fungi and Microbial Matter Exclusion
 TUE-RES 425 (05-24) Residential Re-Roofing Exclusion
 TUE-SUBK 435 (05-24) Subcontracted Work Exclusion with Certificate Condition

TUE-SIL 440 (05-24) Asbestos, Silica and Lead Exclusion
TUE-HGT 450 (05-24) Height Limitation - Six Stories / Seventy-Five Feet
TUE-VA STAT (07-24) Virginia Amendatory Endorsement
TUE-TRIA 900 (01-21) Terrorism Risk Insurance Act - Coverage REJECTED

CERTIFICATE HOLDERS AND ADDITIONAL INSUREDS OF RECORD

- Suffolk City Public Schools - roof replacement, Nansemond Ridge Elementary and Driver Middle School
- Hampton Roads Logistics Center Owner, LLC - 640,000 sq ft TPO re-roof, Chesapeake, VA
- Vanterra Construction Group, LLC - ongoing and completed operations, roofing subcontract scope (out-of-state projects performed as a subcontractor)
- Elizabeth River Medical Properties, LP - roof repair and maintenance agreement
- Blanket additional insured status where required by a written contract executed prior to loss

CONDITIONS AND CLAIM REPORTING REQUIREMENTS

1. NOTICE OF OCCURRENCE. The insured must notify us as soon as practicable, and in any event within forty-eight (48) hours, of: any fire occurring at or within 24 hours after any hot work operation; any water intrusion into a building on which the insured has performed or is performing work; any fall from height, dropped object or injury to a person who is not an employee; and any damage to rooftop equipment, solar arrays or third-party property.
Tidewater Underwriters Exchange - Claims Department
claims@tidewaterexchange.example | (888) 555-0611 (24 hour)
After-hours emergency mitigation referral: (888) 555-0612
2. MITIGATION AND MANAGED REPAIR. Upon a water intrusion event the insured must arrange immediate temporary dry-in and must notify the building owner. Emergency mitigation up to \$ 10,000 may be incurred without our prior approval; larger scopes require our authorisation or use of a vendor from our approved network.
3. RECORDS TO BE PRODUCED. On our request the insured must produce: the daily hot work permit and fire watch log; the daily tear-off and dry-in photographs; the crew sign-in sheets; the weather forecast record for the work location; the subcontract and certificate of insurance for any subcontractor involved; and the signed work order or contract with the building owner.
4. COOPERATION AND VOLUNTARY PAYMENTS. The insured must cooperate in the defense and must not make any payment, admit liability or assume any obligation without our consent, except for first aid.
5. OTHER INSURANCE. This insurance is excess over any builders risk, installation floater or property insurance covering the work, and over any coverage available to the insured as an additional insured, except where a written contract executed prior to loss requires this policy to respond on a primary and non-contributory basis.
6. PREMIUM AUDIT. Annual, based on payroll. Certified payroll records must be retained for three years.
7. LEGAL ACTION. No action may be brought against us until there has been full compliance with all terms, and not until the obligation of the insured has been determined by judgment or by written agreement.

Countersigned at Virginia Beach, Virginia, October 14, 2024.

Authorized Representative

Underwriting Manager, Exterior Trades